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Think before you tweet – the legal perils of social media

Ulster University

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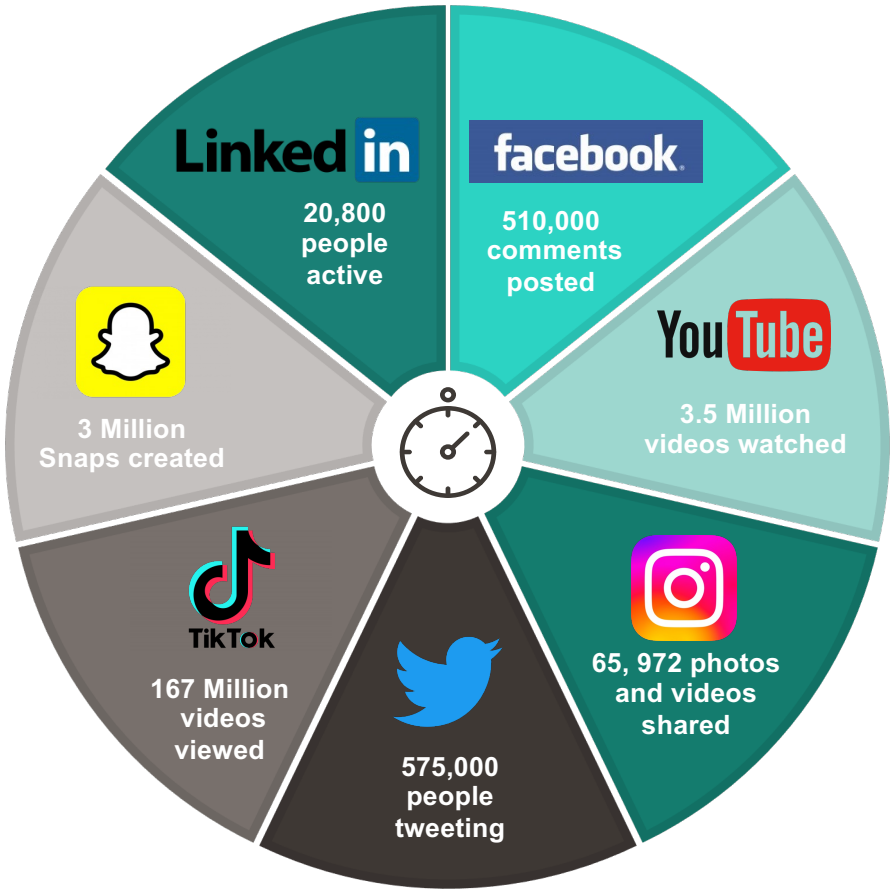
Introduction

2022 – WHAT HAPPENS IN AN INTERNET MINUTE



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Social Media Statistics

January 2023 – Social media use around the world

4.76 Billion

Total number of active social media users.

59.4%

Social media users as a percentage of the global population.

+4%

Annual change in the number of global social media users from January 2022 to January 2023

93%

Percentage of internet users who are also social media users

2H 28M

Average amount of time per day spent using social media.

Introduction

We will cover:

01 | Reputational damage

02 | Discrimination and harassment

03 | Breach of confidentiality

04 | Breach of copyright

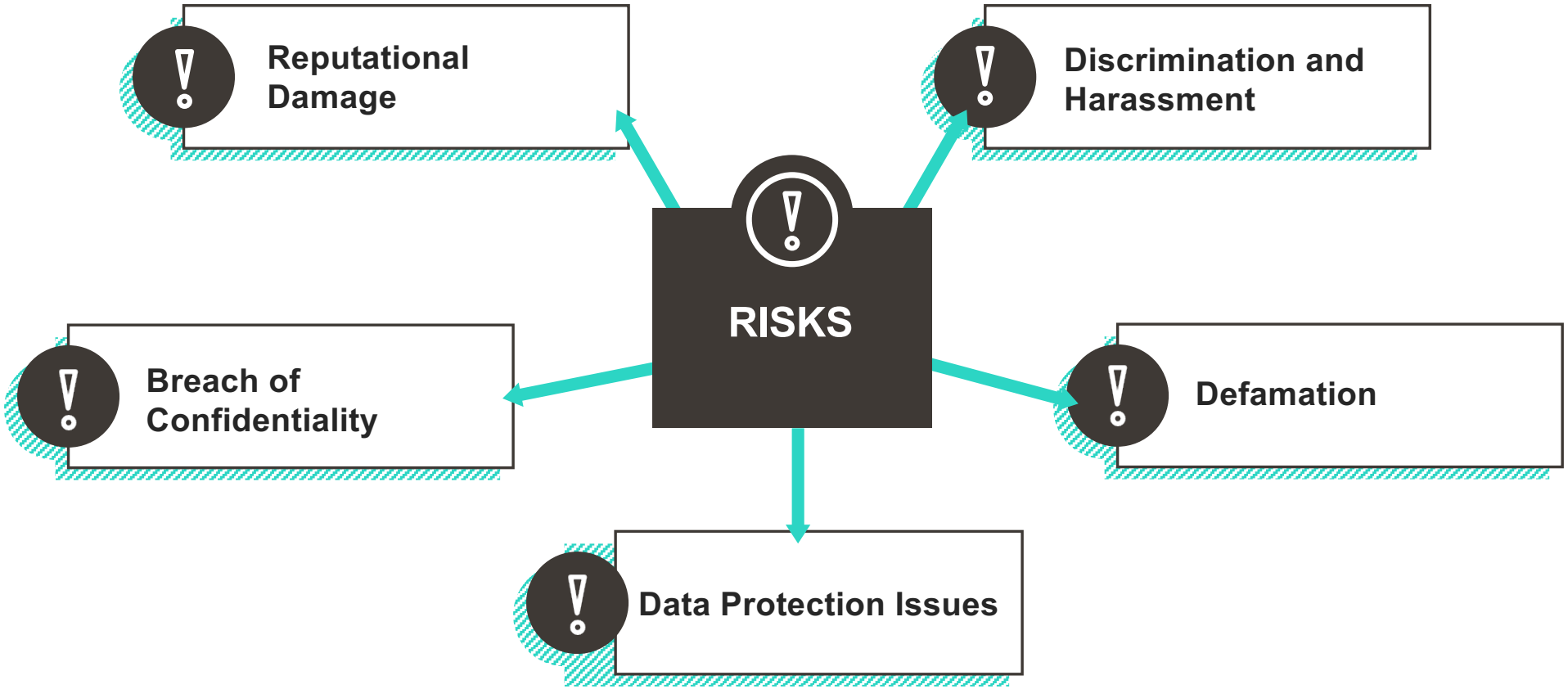
05 | Defamation

06 | Data protection

07 | Recruitment

08 | Top tips

Risks for organizations



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Reputational Damage

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Reputational Damage

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Reputational Damage

- CBS employee fired after tweet about the Manchester Arena bombing to his personal following:
  - ***"The last time I listened to Arianna Grande I almost died too"***

- Adidas – in April 2017 after the Boston Marathon, sent out a tweet saying:
  - ***"Congrats, you survived the Boston Marathon"***

Reputational Damage

Game Retail Limited -v- Laws UKEAT 2014

- Mr Laws was a Risk Prevention Investigator for Game who followed the Twitter accounts of a number of Game stores.
- Mr Laws was dismissed for posting offensive and abusive tweets.
- EAT Held – Stores that followed Mr Laws would have seen his tweets and, potentially, customers. Balance to be found between protecting the employer's reputation and employee's right of freedom of expression.

Reputational Damage

South Western Railway

P Weller -v- First MTR South Western Trains Ltd: 2305668/2020

- Mr Weller – twitter account focused on Brexit and expressions of opinion against immigration
- Tribunal - Weller's "offending material" could damage working relationships in a multicultural workforce - conduct was "culpable and blameworthy"
- Tribunal - Mr Weller was unfairly dismissed - not significant evidence he understood company policy " - reduced both basic and compensatory award by 100 per cent

Discrimination and Harassment

- Employers can be vicariously liable for acts of discrimination and harassment by employees.

- Protected characteristics are:

  > **age, sex, disability, race, sexual orientation, gender reassignment, marriage and civil partnership, pregnancy and maternity, religious belief or political opinion**

- Defence – “reasonably practicable steps” to prevent the discrimination / harassment.

Discrimination and Harassment

Teggart -v- Teletech UK Limited (2012)

- NI Industrial Tribunal upheld dismissal of employee for making vulgar comments about female colleague on Facebook.
  - ***"Quick question who in Teletech has A not tried to F**K? She does get around!"***
- A asked the Claimant's girlfriend to ask him to remove the messages and his response was:
  - ***"A can go and f**k donkey d**k……. LOL"***

Discrimination and Harassment

Teggart -v- Teletech UK Limited (2012)

- Tribunal held:
  - Dismissal reasonable as comments constituted harassment in breach of Teletech's Dignity at Work Policy.
  - Right to Privacy (Article 8 of ECHR) was abandoned by Claimant when he put the comments on Facebook. The right to Freedom Expression (Article 10 ECHR) must be exercised responsibly which hadn't happened in this case.

Discrimination and Harassment

Gaskell -v- University of Kentucky 2011

- Gaskell claimed he was passed over in recruitment process for Director of Student Observatory.
- Internet search uncovered evidence of Mr Gaskill's Evangelical Christian faith and belief in creationism.
- Recruitment Committee member stated in an email that the real reason why they would not offer the candidate the job was "because of his religious beliefs".
- Gaskell settled his claim of religious discrimination for $125,000.

Breach of Confidentiality – During employment

Snay v Gulliver

- In 2010, Patrick Snay, settled a case against his employer, Gulliver, who agreed to pay $150,000.00 ($10,000 in back wages, $80,000 to Snay for settlement, and $60,000 to Snay's attorneys). The Agreement had a confidentiality clause.

- Unfortunately, Snay immediately told his college-age daughter, Dana Snay, about the settlement. A few days later, Dana posted to her 1,200 Facebook friends:

  > "**Mama and Papa Snay won the case against Gulliver. Gulliver is now officially paying for my vacation to Europe this summer. SUCK IT."**

- Gulliver refused to pay the $80,000, Snay tried to enforce the agreement the court refused on the basis that agreement had been breached.

Breach of Copyright / IP Infringement

- Social media posts may infringe a third party's Intellectual Property.
- You cannot post the owner's copyrighted material on social media without permission.
- 2022 – Sony Music settled its case against Gymshark for misusing its songs on Tiktok videos.

SONY MUSIC

GYMSHARK

Defamation

- Employees who post derogatory and untrue comments about their employer or their employer's competitors could be subject to libel proceedings.

- Employers could be vicariously liable for a defamatory statement made by an employee during the course of their employment about a competitor or client on social media.

- **Jack Monroe v Katie Hopkins – £131,000 in court costs and damages.**

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Data Protection

- **General Data Protection Regulations (GDPR**) – standardized data protection rights across the EU (now referred to as UK GDPR in the UK).

- **Data Protection Act 2018** – implemented GDPR in the UK.

- **Morrisons Supreme Court Decision 2020**
  - Employee with a grudge leaked the payroll data online of about 100,000 members of staff.
  - Morrisons won at Supreme Court - overturning previous judgments which gave the go-ahead for compensation claims by thousands of employees whose personal details were posted on the internet.
  - Held – the employee's actions were not closely connected to his work and Morrisons could not be vicariously liable

Recruitment

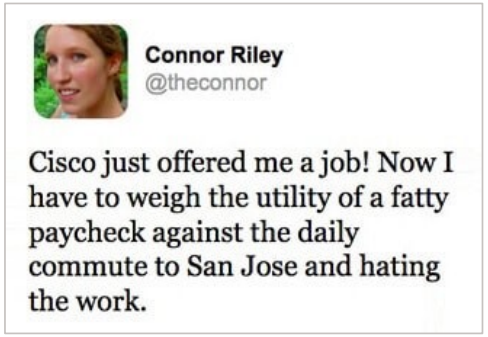
- Career Builder Survey – 70% of employers use social media to screen candidates during the hiring process.

- Connor Riley in US tweeted herself out of a job:

  > ***"Cisco just offered me a job! Now I have to weigh the utility of a fatty pay check against the daily commute to San Jose and hating the work".***

- Reply:

  > ***"Who is the hiring manager. I'm sure they would love to know that you will hate the work. We here at Cisco are versed in the Web".***



Social Media Dos and Don’ts

Do

- ✓ You are what you share.
- ✓ Restrict the sharing of confidential information and copyrighted material.
- ✓ Restrict use of Company logos or brand trade marks unless approved.
- ✓ Restrict personal social media use during working hours and/or on Company devices.
- ✓ Review Social Media Policy regularly

Don’t

- × Allow use of information where the source or ownership is undetermined.
- × Copy
- × Make statements of opinion that you cannot back with facts.
- × Ignore genuine complaints.

Questions?

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